

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
September 28, 2026, 8:30 AM, Department 2
101 Maple Street, Auburn**

Published September 23, 2026, 12:50 PM

Updated September 23, 2026, 10:30 PM

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **September 28, 2026, 8:30 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are **not** a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0008658 Xzander J Caldwell Spec Needs Trust; In re the

5th SNT account is recommended for approval as prayed.

2. S-PR-0009178 George Doney Spec Needs Trust; In re the

4th / final SNT account

Appearance is required for continued hearing on 4th / final SNT account to consider trial setting.

Petition to modify trust

Appearance is required for hearing on petition to modify trust to consider trial setting.

3. S-PR-0009759 In Re the Estate of Borba, Shane

Appearance is required for continued hearing re final distribution.

Missing required final distribution petition. Estate administration was required to conclude in August 2020. The final distribution petition is now nearly 5 years overdue.

4. S-PR-0012136 In Re the Estate of Wiser, Shirley Patricia

Clarification is needed: petitioner proposes distribution to 15 individuals in shares ranging from 1/6 of the estate to 1/24 of the estate. Neither the petition for final distribution nor any of the 5 petitions to administer estate filed between April 2023 and June 2024 (with additional amendment in July 2024) include sufficient information about the relationship of proposed heirs to decedent to confirm that the proposed distribution is according to law. The complete relationship of each heir to decedent, including intervening relatives, is needed.

5. S-PR-0012308 In Re the Marie E Gallagher 2003 Trust

Appearance is required for hearing on petition to suspend / remove trustee, for surcharge, and to appoint successor trustee to consider trial setting.

6. S-PR-0012405 In Re the Estate of Kemp, Richard S.

Petition for final distribution is recommended for approval as prayed.

7. S-PR-0012766 In Re the Estate of Varela, Samuel David JR

Petition for final distribution is recommended for approval as prayed.

8. S-PR-0012992 In Re the Estate of Hoshall, William Coburn

No appearance is required for status hearing. Status hearing to be set April 24, 2028, 8:30 a.m., in Department 2.

9. S-PR-0012995 In Re the Estate of McSween, Beverly Ann

Clarification is needed: the account includes an entry for unexplained "retainer reimbursement." The report does not describe or disclose any retainer or how said retainer was applied to any attorney fees or costs. Neither counsel nor administrator may use estate funds to pay or reimburse payment for attorney fees without court authorization. Counsel may not receive fees in excess of ordinary fees under the guise of a retainer without an approved request for extraordinary fees.

10. S-PR-0012999 In Re the Estate of Ratkowski, Donald J

Appearance is required for hearing on petition to remove administrator and for other relief.

Missing direct service of notice of hearing to suspended administrator Helen Meads. Service to counsel alone is insufficient. Prob.C. § 1214; C.R.C. 7.51(a)(1)–(2) & (b).

11. S-PR-0013097 In Re the 2002 Rusch & Sandra Delong Rev Trust

Appearance is required for continued hearing on petition to remove trustee and for other relief.

Current status—including status of settlement—is needed.

12. S-PR-0013156 In Re the Estate of Canfield, Carl W

Administrator's response is needed: Exhibit 4 to the petition conflicts with ¶ 23.1 as to total hours and total fees. Exhibit 4 describes work that is ordinary in all administrations (preparation of petition and orders, attendance at hearing, correspondence with administrator, FTB notices, preparation of final petition, etc.), and does not appear to show any extraordinary services to the estate.

13. S-PR-0013308 In Re the Estate of Elgersma, Margaret Ann

Petition for final distribution is recommended for approval as prayed.

14. S-PR-0013559 In Re the Estate of Willeford, Roger Earl

Clarification is needed: Summary of account information for Schedule C as stated in the petition conflicts with the same information in the attached account, without explanation.

15. S-PR-0013560 In Re the Estate of Howe, Scott Jeffrey

Clarification or response is needed: the assignment of interest executed by Paul Howe relates only to a specified real property "contained in the Decedent's estate." Said real property is not an asset of the estate and was not an asset of the estate on the date of execution of the assignment. See attachments to petition. Administrator's clarification or response is needed as to the effect of the narrowly drafted assignment language.

16. S-PR-0013595 In Re the Estate of Scherer, Gerald R.

Missing sufficient notice of hearing for petition for final distribution. Notice as states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

17. S-PR-0013622 In Re the Estate of Marcucci, Laila

Missing account schedules(s) for all disbursements and distributions.

Clarification is needed: summary of account identifies \$20,000 as "Distributions to beneficiaries." The court has not authorized any preliminary distributions. The sole beneficiary of the estate is petitioner as trustee of decedent's trust. Clarification is required as to the nature of these distribution(s), including date, purpose, recipient, and legal authority to make preliminary distribution of estate assets.

18. S-PR-0013686 In Re the Estate of Douppnik, Travis Todd

Missing service of notice of hearing for petition to compel access to digital assets to respondents Google and Apple.

Clarification is needed: the provisions of the Revised Uniform Fiduciary Access to Digital Assets Act, Prob.C. §§ 870–884, cited by petitioner at ¶¶ 6–8 of the petition do not include the language which administrator presents as statutory quotations. Prob.C. §§ 872, 873, and 880(d) do not appear address the matters for which they are cited.

19. S-PR-0013910 In Re the Ernestine Contreras Garcia Liv Trust

Petition to suspend trustee, compel account, appoint interim trustee

Appearance is required for continued hearing on petition to suspend trustee, compel trustee account, and appoint interim trustee.

Trustee account

Appearance is required for continued hearing on trustee account.

Clarification is needed: objections to a purported amended account were filed. No amended account has been filed or set for hearing.

Missing notice of hearing re original trustee account. Missing service of notice of hearing.

Missing verification to account. Prob.C. § 1021.

Account, as filed, does not comply with any format or content requirements of Prob.C. § 1060–1064: missing opening property on hand schedule in required form; missing other charges schedules (receipts, gains on sale); missing credits schedules (disbursements, distributions, losses on sale); trustee's time log is not part of an accounting; trustee may not demand payments from Ricardo Garcia through an account; missing final property on hand schedule.

Missing required trustee report. Prob.C. § 1064.

The account, as filed, cannot be approved.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.

Ex parte application to advance and adjudicate petition for instructions

Appearance is required for hearing on ex parte application to advance and adjudicate petition for instructions.

20. S-PR-0014170 In Re the Estate of Nelson, Shirley J.

Appearance is required for hearing on amended petition to determine succession to primary residence.

Missing notice of hearing for amended petition. Missing 15 days' service of notice of hearing for amended petition. Amended petition requires complete re-noticing. C.R.C. 7.53.

Missing required allegations at ¶ 9a(3)–(4) (registered domestic partner) and (7)–(8) (issue of predeceased child(ren)).

Missing Attachment 11, including legal property description, APN, and facts showing the residence was decedent's primary residence.

21. S-PR-0014209 In Re the Estate of Lawson, Linda Lee

Will is not self proving (witnesses did not execute any declaration or affidavit).
Missing proof of will.

Missing residence information for proposed executor (¶ 3h).

Missing required allegations at ¶ 5a(3)–(4) (RDP).

Clarification is needed as to person identified in ¶ 8 as "adopted grandson," which is insufficient to describe the relationship with decedent.

22. S-PR-0014210 In Re the Estate of Taylor, Susan C.

Missing original will. Prob.C. § 8200(a).

Missing declaration re terms of beneficiary trust. Local rule 80.2.1.

Missing residence information re proposed executor (¶ 3h).

23. S-PR-0014212 In Re the Arlene M. Lane Liv Trust

Missing sufficient notice of hearing for petition to approve 1st / final trustee account. Notice as states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

24. S-PR-0014213 In Re the Estate of Wallace, Gloria O'deal

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

25. S-PR-0014214 In Re the Alan & Carolyn Meyer Trust

It is recommend the petition to determine trust property be denied.

Relief as to the Wells Fargo account is not available under *Estate of Heggstad* (1993) 16 Cal.App.4th 943 because the account is not described in any way in the trust or its schedules.

Relief is not available under *Kucker v. Kucker* (2015) 92 Cal.App.4th 90 because the trust and trust schedules do not include any general assignment language reaching all personal property.

Relief also cannot be granted through the pourover will. "In the absence of any transfer to [a] trust prior to [decendent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

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26. S-PR-0014215 In Re the Estate of Ward, Jay

Petition to administer estate is recommended for approval as prayed.

27. S-PR-0014216 In Re the Estate of Albrecht, Peter

Missing sufficient publication of notice of hearing. Notice as published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

28. S-PR-0014313 In Re the Robert Des Jardin & Virginia Des Jardin Rev Trust

Appearance is required for status hearing re ex parte application and order.

Missing evidence of personal service of ex parte order and other required papers on Stephen Des Jardin as previously ordered.

Note: the original petition and other filings indicate Stephen's surname is *Des Jardins*. Recent filings abandon that formulation in favor of *Des Jardin*.